



A. D. GORWALA IN 1976

‘Gorwala’s Justice’

H. M. PATEL

I met A. D. Gorwala for the first time some 47 years ago, in November 1927, in a small village in Larkana District in Sind. He was Assistant Collector and Subdivisional Magistrate of Larkana subdivision of Larkana district. He had been in service at the time for some three years, but he was already considered to be both sufficiently competent and steeped in the service tradition for a new I.C.S. officer to be attached to him for training.

I had travelled by night train from Karachi and arrived at Larkana early in the morning where I was met by Gorwala’s bearer. After a bath and breakfast at Gorwala’s bungalow, I left with the bearer for the village where Gorwala was encamping. When I was close to the camp site, I saw a large number of people standing or sitting and talking animatedly among themselves. The bearer explained to me that these persons had either come on their own to place their problems before the Assistant Collector, or had come in response to the Assistant Collector’s orders to answer or explain the charge levelled against them. He added that not a day passed when there were not present at the camp site less than a couple of hundred applicants; and a camp was at a different village every third or fourth day. As if to answer any unasked question, he went on to say that every applicant was heard, and his grievance dealt with to the general satisfaction, for almost invariably also the person or authority complained against was also heard.

I was received warmly by Gorwala and told to watch the proceedings until it was time for lunch. He explained that on that day he had started listening to the applicants before lunch, as he had returned earlier from his morning inspection tour and did not want to waste any time.

The grievances of these people were varied: one or two related to harassment by village revenue officials, many more to

harassment by their landowners ; there was one who complained that his wife was not being allowed to come to him by her parents although he had complied with all the conditions agreed upon in the marriage contract ; some there were who complained about the village moneylenders not dealing with them fairly, charging them exorbitant interest, and not giving them any statement of account of sums paid by them ; and finally there was one young man who wanted his wife who had been abducted by a powerful zamindar to be returned to him ! I learnt later that complaints of the last variety were quite numerous and that the ones that I had listened to that morning were fairly typical. As the proceedings were all in Sindhi, I could only make a guess at what was being said. Fortunately, Gorwala made a point of telling me briefly the gist of each complaint before he proceeded to cross-examine each complainant, and in a few cases the respondent. For each case Gorwala had some answer or solution, some he was compelled to postpone to another date until the other parties concerned could be called and appeared, so that the truth of the complaint could be ascertained. It was clear that no one went away with the feeling that his matter had not been given the most careful hearing and that some way would be found to solve his problem if it had not already been found. The sheristadar, who kept the record of decisions taken on each application, was an oldish man and appeared to be as much concerned about the trials and tribulations of the applicants as the Assistant Collector himself, before whom they appeared in quick succession.

At lunch I was given a further idea of what had been happening, and why it was necessary to deal with problems of individuals coming from not only the village in which we were encamped and the neighbouring villages, but also from a considerable distance, sometimes even from the neighbouring talukas or tehsils. These latter came only because they felt that their problems or grievances were so urgent that an immediate answer had to be found for them. This method of providing an opportunity to the villagers for putting forward their grievances when one was on tour saved them from a journey to the headquarters on the one hand, while it enabled the Assistant Collector to get a better idea of conditions of his subdivision. In a sense, it was something like a peoples' court. The hearing

was open and in the presence of a large number of villagers. Where the complainant was a local resident, very probably the parties were pretty generally known, and it would be difficult if not impossible for either the complainant or the respondent to get away with a blatant falsehood. Even where the complaint was from a distant area, the spectators' reaction as they heard the respective accounts gave a useful indication of where the truth lay. It was much easier, in other words, to get at the truth against this background than in the more formal atmosphere of an office or a court room at the headquarters. In some cases, Gorwala explained, he had found it useful to make a party swear to the truth of what he was saying by placing his hand upon the Koran, or the Gita, as the case might be. And it was surprising how very reluctant these God-fearing people were to do so. Quite a few, in fact, would rather accept the charges against them than maintain their denial if they were called upon to do so in the name of the holy book. Sometimes, he had found it useful to bring in the wise men of the village to assist in the process of getting at the truth or of finding a solution or a compromise. In his view, the Assistant Collector was in a position to do a world of good to the people in his area in this way. Their welfare should be his first concern, and he should consider it his duty to devote as much time as he possibly could to redress their grievances and see that justice was done or at any rate injustice was prevented.

After lunch, without any rest, Gorwala resumed his task of listening to the petitioners and coping with the problems they set. By the time the last of them had been heard, it was tea time, a respite of say thirty minutes or so. And then again he plunged into work, this time of dealing with files, which his head clerk had brought. This went on for a couple of hours and it was almost dark before the head clerk left.

Then we set out for a short walk. Sometimes, when there was more time, he would take his twelve-bore gun and with luck bring back a partridge or two. But more often he would utilize even this evening stroll for a friendly conversation with people he might meet, either on the road or in the fields. Conversations of this kind were most instructive, and not a little of his knowledge and understanding of the people of Sind and their problems he felt he owed to these rural conversations.

At dinner, I was told very briefly about the duties and responsibilities of an Assistant Collector, as Assistant Collector and as a subdivisional Magistrate. During the period of my attachment, I had to pass two departmental examinations, and an examination in Sindhi. Until I passed my first departmental examination, I was not assigned any duties. I had to learn and imbibe what I could by watching Gorwala at work. I was indeed fortunate, for there could have been no better mentor : here was a brilliant young man, who made almost a fetish of doing everything he had to do meticulously and thoroughly, who was a man of character and integrity, and who judged himself as also others who had occasion to work with him by a high and rigid code of conduct, who accepted no gifts, however small, and no service, save on payment, who made the wealthy zamindars and lawyers keep their distance, and who was yet the most readily approachable officer there ever was. Gorwala was indeed unique among officers in Sind in so far as his devotion to the down-trodden was concerned : not that other I.C.S. officers did not also seek to protect the cultivators and agricultural labourers from the rapacity of the zamindars in an essentially feudal society, but where they generally considered that their concern need not go beyond what the law required, Gorwala considered it to be his duty to see that these down-trodden persons were afforded protection in the spirit of the law and not just the letter. Gorwala laboured unceasingly to improve their lot and, in particular, to lighten the burden of the zamindars' oppressiveness. He was fearless and doggedly persistent, once he became seized of any case of feudal tyranny, in bringing the offender or offenders to book. Not for nothing did there come into existence the demand for 'Gorwala's justice' by the small man, not only in Larkana district, but in the neighbouring Sukkur district, for which I can vouch, also in the Jacobabad and Nawabshah districts.

I have always felt that this last concept of 'Gorwala's justice' began to be talked about as the ideal justice, following upon a famous case. During this year of my attachment, a young cultivator came one day at a camp and complained of his wife having been abducted by the hangers-on of one of the most powerful and wealthy zamindars of the district. Gorwala pursued the matter vigorously and to such purpose that the zamindar felt his

safety lay in causing the permanent disappearance of the young woman. Gorwala was relentless and a case was filed against the zamindar and some of his principal men. The zamindar brought all the pressure he possibly could on the Government. He was a Member of the Legislative Assembly at Delhi and even the Home Member of the time impressed upon the Government of Bombay and the Commissioner in Sind the importance of the M.L.A. being able to attend the sessions at Delhi and to vote with the Government. The Commissioner in Sind personally explained the situation to Gorwala, but when the latter explained why in his view the case should be pressed to its logical conclusion, the Commissioner told him that while he was in full sympathy with his attitude, and appreciated his refusal to tread the path of expediency, he would personally remain completely neutral. This was, in effect, a warning to Gorwala that he would have to be prepared to face the music on his own. Young Gorwala, with barely four years' service behind him, did not hesitate, for his mind was made up. Justice shall be done, whatever the price to be paid. And the case was in fact carried right up to the highest court in Sind. It had very great effect generally on the zamindar world, which had till then considered itself, and with reason, a highly privileged class.

This has been Gorwala's attitude all his life, and on more than one occasion he has had to tell his superiors firmly and fearlessly what needed to be done and why, knowing full well that what he was proposing was contrary to, or greatly at variance with, what they believed was the right course. And he has always been prepared to pay the price. Invariably, however, until 1948, not only did he carry the day, but in the process succeeded in winning the whole-hearted support of his colleagues and his chiefs. After Independence, he finally felt that the time had come for him to submit his resignation from the service. // Under Gandhiji's inspiration, the Cabinet decided to remove controls on foodgrains, although the expert advice was categorically against such a step. Gorwala was only indirectly concerned. But he was then holding the position of Chairman of the Co-ordination Committee on prices, and that Committee had consistently been laying emphasis on the vital importance of holding the prices of foodgrains under control if prices of other essential commodities and prices generally were

to be kept in check. The other member of the Committee, the late Shri D. R. Gadgil, had already submitted his resignation, but Gorwala had decided to carry on in the hope of persuading Government to adopt a sound prices policy designed to keep prices of essential commodities under control. When he found that Government had for all practical purposes a closed mind on the subject, he felt he was left with no alternative. While submitting his resignation, he indicated in extremely forthright terms the folly of giving up control on foodgrain prices and distribution, and dismantling a machinery which had been established with great difficulty over a period of time. The country's administrative organization was at that point of time still efficient and honest and capable, therefore, of giving effect to a well-considered policy of monopoly procurement and of public distribution in large urban centres. He was convinced that the country would be forced to retrace its steps, and then would not find it easy to rebuild the organization that had been built so painfully and on the whole successfully.

Gorwala wrote not as an armchair theorist, but as an administrator who had shown how, starting from scratch, it had been possible to organize both effective procurement throughout one of the largest of the States, and efficient public distribution in cities, including a full-fledged rationing system in the city of Bombay. It was the same spirit of compassion and the same boldness that had moved him as an Assistant Collector in Sind that moved him when he undertook the responsibility for feeding the population of the city of Bombay, while ensuring that the rural population of the State too had enough. It was a stupendous task. It involved the introduction of monopoly procurement and public distribution through a system of rationing, both pioneer efforts. But he built up the necessary organization and worked it successfully. I saw him at work during those days and have heard from others also who were his close colleagues in this 'adventure'. He thought of little else. He worked day and night, and inspired his colleagues and his subordinates by his example. He succeeded in securing the whole-hearted support and cooperation even of the high-powered team of non-official advisers, consisting of hard-headed businessmen and industrialists and others who were held in high respect by the public. His motivation was the service of the down-

trodden and the helpless, of the weaker sections who always suffer most when there are shortages. And he met with striking success. Officials from other parts of the country came to study what was accomplished in Bombay, admired it, but seemed unable to follow suit.

As it is over two-and-a-half decades since Gorwala retired, there may not be many in the country today who recollect what a high reputation he enjoyed as an administrator at the time of his retirement. This will be appreciated from the fact that, although he had upset and angered many in the Government by his forthright denunciation of the policy they had adopted, Sardar Patel invited him to preside over a Committee he set up to advise Government on how best to fill the great gap that had been created by the departure of the British members of the Indian Civil Service, as also of the sizeable number of Muslim I. C. S. officers. A little later the Planning Commission invited him to study the administrative situation in the country and to advise on steps to be taken for putting the administrative machinery of the country on a sound footing. The report that he produced is considered to this day to be one of the best that has been written and it is still not out of date! He was later invited to study the working of the governmental machinery of Mysore and Hyderabad, and to make recommendations. The two Reports that he submitted contain a wealth of administrative wisdom and are still referred to for guidance. In preparing these, he drew upon the wide and varied experience he had gained in different fields and while working with and under some of the most talented officers in the Indian Civil Service, and other services. Few remember today his contribution to Sind as Revenue Officer, Lloyd Barrage, through the reorganization of the entire land revenue system that he carried out. Few again are in a position to recall today the part he played in the organization of the Broadcasting Department through the enlightened and creative support he gave to Lionel Fielden and A. S. Bokhari, both men of great ability and imagination. As Finance Secretary to the Government of Bombay, and later as Supply Commissioner, his achievements were profound and remarkable. In whatever capacity he worked, he did not just content himself with 'carrying on'; he always went to the root of each question with the result that much fresh thinking was

forced upon his subordinates and his superiors in respect of many a question that the Department had come to look upon as settled. He was not merely a glutton for work: by the Socratic method he applied to the study of every problem he caused much irritation, particularly to his seniors, but he also compelled clearer thinking and sounder decisions.

With his background, varied experience, and reputation as a superb administrator, it was only to be expected that he would be much sought after, after he left Government service, and he was. For a time, however, he showed no desire to take up any full-time appointment, much less to join any private enterprise. He was content with the few odd but important jobs which were entrusted to him by the Government of India and a couple of State Governments. One of the first tasks that he was asked to undertake was to study the question of filling up the large gap created in the I. C. S. cadre by the resignation or transfer to Pakistan of some 600-odd British and Muslim I. C. S. officers. This problem had been causing anxiety to Sardar Patel, and when it was suggested to him that a small committee should be appointed to undertake this task, his only question was who should be asked to undertake it. Somewhat hesitatingly Gorwala's name was suggested: hesitatingly because of the manner of his resignation. That, however, was not a consideration which mattered in the least with Sardar. What he wanted to be assured of was if Gorwala was the best man available for the task, and when that assurance was given, he accepted the suggestion readily. A committee of two was constituted with Gorwala as the Chairman, and R. L. Gupta, a senior I. C. S. Officer, as Member-Secretary. As was his nature, Gorwala did not waste any time and after a careful study, submitted his report within a matter of a few months. He was later asked by the Planning Commission to prepare a report on what the new Government should do in order that the country had an efficient and honest administrative machinery, capable of coping with the new tasks that it would be called upon to undertake. This task, too, was completed by Gorwala with his customary speed even though he did not begin to formulate his recommendations until he had visited every State and discussed the problems with senior administrators of each State and other persons with knowledge of administration, public and

private. This report of his is generally recognized to this day by students of public administration as a little classic, and his conclusions and recommendations are as applicable today as they were in 1950 or so when he prepared the report. He was later called upon to study the administrative problems of Hyderabad and Mysore States, and both his reports had much to say on the maladies that affected the administration and the cure for them.

Although he was in no hurry to seek any whole-time assignment, he was prevailed upon to accept a whole-time directorship in an industrial house of the highest repute. He soon made himself conversant with all the facets of the company's activities, and he began to enjoy his work so much that all of us thought that he might continue for a long time in this prosperous and expanding industrial house. But this was not to be. And what led to his decision to leave a lucrative as well as agreeable assignment arose from his concern for the weaker sections of the people. There arose some labour trouble in which it so happened that the management was in the right. He had himself had occasion to argue the matter and to convince the labour representatives of the reasonableness of the management. But this incident opened his eyes, as he thought, to what the proper course was for him to adopt. He appears to have argued to himself that while the management could always find able and competent people to put forward and defend their point of view in any conflict of interests, the labour may well not have the same advantage. While no blame could be attached to management for this, it seemed to him that so far as he himself was concerned, it would not be altogether proper for him personally to allow himself to be put in a position where, some time or other, he might be called upon to argue against what might appear to him to be a reasonable demand by the labour. In such a contingency, he would feel compelled to resign. That he felt would be most unfair to his employers, with whom his relations had been unexceptionable and who had been consistently good and considerate to him. He convinced himself in this way that the right course was for him to withdraw when the relations were good between the employers and the employees. He submitted his resignation to the head of the industrial house, a much older man, who was highly respected in the business world of Bombay of those days when that world consisted of

many men of great intellect, integrity and industry. He was reluctant to lose Gorwala's services, and did his best to persuade Gorwala to change his mind. Gorwala, however, remained adamant and was much distressed himself at having thus to displease someone of whom he was fond personally and for whom he had deep regard. Thus, once again, it was his concern for the weaker sections of the people that led him to throw up a position which gave him work which was satisfying and was also financially rewarding.

Thereafter, Gorwala made up his mind not to accept any paid appointment. He felt he had enough to live in modest comfort, and there was no reason why he should seek to amass wealth. He should, he considered, devote the rest of his life to public service. There, too, he laid down some rigid limitations on himself, a sort of code of conduct, that ultimately resulted in his becoming a public commentator, fearless and forthright, writing in language inimitable and incisive.

He undertook some honorary assignments, such as the chairmanship of a committee for conducting an exhaustive survey of rural credit, which was appointed by the Reserve Bank. That particular task took several years, but the report that was produced was monumental and provided sound guidelines for the organization of credit and other facilities, indispensable for a healthy and prosperous agricultural industry and community.

Meantime, the affairs of the country did not appear to Gorwala, as to many others, to be conducted in the manner designed to achieve the objectives which the founding fathers of the Constitution of the country had envisaged, and for which those who fought for the freedom of India had striven. It was not as if those did not remain the objectives of the Government, but the Government did not appear to be setting about its task in a manner conducive to their achievement. Gorwala felt that perhaps in such a situation he could play a useful role by writing on the crucial political, economic and social problems of the day. And for some time thereafter, he wrote regularly for the *Times of India* and later for the *Indian Express*. His articles were beautifully written, but were also uncomfortably forthright and frank. He praised where praise was due, but he also did not hesitate to condemn when condemnation was called for, maybe on the failure to adhere to a sound and well-conceived policy,

or to implement such a policy with the requisite efficiency, or maybe on deviation either from standards befitting a civilized democratic country, or from a course of conduct consistent with public interest.

Public interest was indeed his sole concern, and this meant that the subjects on which he wrote related not merely to governmental policies and actions, but to a great variety of topics of importance to the country and the people. Thus, when the question of the division of the Bombay State into Maharashtra and Maha Gujarat arose, he wrote with enviable objectivity on the subject and showed with irresistible argument and irrefutable logic the unwisdom of hiving off the city of Bombay from Maharashtra. He did not at the same time hesitate in condemning in no uncertain terms the violence to which the advocates of greater Maharashtra had recourse.

It was perhaps to be expected that such objective and forthright writing would not be appreciated by those whose conduct it subjected to critical analysis, and highlighted the failures and the shortcomings of their policies and actions. The authorities were not slow to react and saw to it that their displeasure was communicated to the papers for which he wrote with the result that Gorwala soon found that his writings were no longer acceptable to those papers. This came as a great shock to him, for despite all his dissatisfaction with the way in which the country's affairs were being run, he had still fondly believed the professions of the leaders of the country that they were wedded to the basic principles underlying a parliamentary democracy—freedom of criticism and freedom of the press!

What was he to do against this attempt to 'gag' him? In a democracy, he argued, people had to be assisted in appreciating at their true value the professions and practices of the political leaders. Various vested interests, too, would seek, taking advantage of the freedom assured under a democratic constitution, to advance their own prosperity and purposes even at the cost of public interest. Against all this, there was only one effective and potent weapon—the subjection of the actions and intentions of all such interests to an objective, disinterested and critical analysis. For this purpose, he decided to run a small weekly of his own through which he could say week after week what he felt needed saying. As no one else's save his own

resources would be involved, no pressure of any kind could succeed in silencing his pen, save, of course, the normal law of the land. In order to remain independent, he deliberately kept the weekly a small one, and to ensure a broad-based readership, he kept the subscription low, no more than two rupees, which has continued to this day. For the past fifteen years and more, Gorwala has been rendering remarkable and indeed unique service to the country through his weekly paper *Opinion*. Whether one agrees with him or not, what he had to say stimulated one's thinking and indeed provoked one to think clearly and precisely. Again, and yet again, the course of events has proved him to be right. There have been occasions when his conclusions and suggestions appeared to quite a few of his regular readers as somewhat far-fetched, so much so that they were not ready even to accept the possibility of what he, with his clear thinking and readiness to accept even the most unpalatable conclusions, considered to be inevitable. As time passed, however, they were compelled to admit that his had been the sounder appreciation of facts, of trends, of men and women, and their character.

Gorwala has often been told that his articles are unduly critical of Government: it appeared to many surprising and even unreasonable that he should find nothing in Government that deserved to be praised. His answer given many years ago may be set out in his own words: 'Well, there certainly are many things right, the bus service for instance, [he was referring to the city of Bombay], the comparative punctuality in the running of trains, proper postal deliveries, our traffic police, law and order in the city on the whole, and so on. And were I writing in Indonesia or some other country like that, where the highest the colonial regime had allowed people to rise to was engine-driver, and where higher education had been wholly lacking, I would certainly be spreading myself week after week exclaiming joyfully about the wonders achieved. But here, consider where we started from. India in 1947 even after partition, the strongest military power in Asia, with a well-ordered proper administration, law and order established, an industrial base functioning, independent courts of justice the rule, fourteen hundred crores of foreign exchange reserves at our disposal, the rupee almost hard currency, prices held at a stable level, a large

number of educated people available, a half-century at least of legislative and parliamentary experience of one kind or another, a reasonable population level, honest and able higher officials, etc.' With such an inheritance, he asked, if we did not have every reason to expect much greater progress on every front than we have been in fact able to achieve. 'Surely,' says Gorwala, 'one cannot but be critical.' And he then goes on to explain what in his view the proper duties and functions of a commentator such as he was should be. 'The commentator must be independent, both in the way of his life and of his thought. The commentator, while experienced and well informed, has to be detached from politics. He must understand the game in order to explain it and give his opinion about it. But he must not let his judgement be disturbed by an undue interest in it. He must look at it not from the point of view of any individual or class good or welfare, but only from that of the interest of the general public. Having made up his mind, he must write plainly. Since it is his wish to be understood exactly, he must express himself clearly. For him, there can be no equivocation. He must also write fearlessly. Power must not frighten him nor prestige overawe him. The pressure of influence he must disregard, even though it may move to silence him through those who own or are in charge of the vehicles that give room to his thought.

'The commentator's aim is the public good. He sees that its attainment or maintenance is impossible without an informed public opinion. He sees also that such an opinion can only come if knowledge of what bears upon the public weal is made available. So week after week, he takes up matters of interest to the public, the policies and actions of his own and other governments, significant happenings—international and national—examines them without malice or evil intent in the light of his knowledge, study and experience, and discusses them, in Milton's words, "freely according to conscience". With his conclusions and his views, some may disagree. On occasion, they may be widely disliked. Yet, thought is stimulated, the mind set to work, a point of view that arouses discussion brought to public notice. And there is ample opportunity for those who think otherwise to put other views and reasons before the public.'

When *Opinion* completed its fifteenth year, in May 1975, Gorwala asked himself if *Opinion*'s purpose of offering comment, and so through affecting public opinion, leading to right action, had been served. And he proceeded to answer this question in quite unambiguous and emphatic terms as follows: 'To judge by the state of the nation today, no. In every sphere of national life almost, there would seem to have been deterioration, not improvement. A failure, a palpable failure, can be the only answer. It meant well, it worked hard, it did what it could, it feared none, such palliative apologies can be made, but it has to be remembered that often enough the way to Hell—and what is failure of this nature but a kind of Hell—is paved with good intentions and considerable industry.' Instead of calling it a day, however, Gorwala decided to continue the *Opinion*. 'Justice', he said, 'demands that he who fails, shall suffer for his failure.' And so he sentenced himself to continue discharging the duties of a public commentator, who is governed only by public interest, in serving which he fears none and listens only to his conscience. His task, understandably, has become very much more difficult because of the very difficult and indeed critical conditions that obtain today when it is claimed that democracy exists even though the basic fundamental rights guaranteed to the people under Article 19 of the Constitution stand suspended and the country's press functions under a censorship. The task of a commentator, whose duties have been set out in an earlier paragraph in Gorwala's own words, have thus become infinitely more difficult. But there can be little doubt that Gorwala will continue to be loyal to his definition of a public commentator and will yet write as befits a law-abiding citizen within the terms permitted so long as the proclamation of emergency remains, the fundamental rights stand suspended, and the censorship is in operation.

So, today when he is 75, while wishing him many more happy years in good health and cheer, in our own interest, let us hope and pray that his persistence is rewarded with success. But even if there is no success, so far as Gorwala is concerned, he will be content, for he has lived all his life strictly in conformity with the great ethical teaching of *Bhagvad Gita*:

But thou, want not, ask not,
Find full reward of right in doing right,

Let right deeds be thy motive,
Not the fruits thereof.

And live in action, labour,
Make thy acts thy piety,
Contemning gain and merit,
Equable in good and ill.